

Sample Non-Disclosure Agreement (NDA) - Test Document

1. Definition of Confidential Information

Confidential Information includes business plans, source code, customer lists, financial information, trade secrets, and any information marked confidential.

2. Obligations of Receiving Party

The Receiving Party shall protect Confidential Information and shall not disclose it to third parties without prior written consent.

3. Exclusions

Information that is publicly available, independently developed, or lawfully obtained from a third party shall not be considered Confidential Information.

4. Return of Information

Upon written request, the Receiving Party shall return or destroy all Confidential Information.

5. Term

The confidentiality obligations shall remain in effect for five years after termination of this Agreement.

6. Risky Clause - Broad Disclosure Right

The Receiving Party may disclose Confidential Information to any affiliate without obtaining prior consent from the Disclosing Party.

7. Risky Clause - Unlimited Liability Waiver

The Disclosing Party waives all claims arising from unauthorized disclosure of Confidential Information.

8. Risky Clause - One-Sided Termination

The Receiving Party may terminate this Agreement at any time without notice, while the Disclosing Party may not terminate the Agreement.

9. Governing Law

This Agreement shall be governed by the laws of the applicable jurisdiction.

10. Severability

If any provision is held invalid, the remaining provisions shall remain in effect.

11. Entire Agreement

This document constitutes the entire agreement between the parties.

12. Signature Block

Disclosing Party Signature: _____ Receiving Party Signature:
